

## Savir Ali v. State of U.P. — recovery citation: speaking final order and s.127 liberty

High Court of Judicature at Allahabad · Division Bench · 18 January 2020 · WRIT - C No. - 1646 of 2020 · **Writ disposed; EE to pass speaking final order; s.127 if aggrieved.**

### HEADNOTE

A consumer's writ to quash an electricity recovery certificate, alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed of without examining the merits. The High Court directed the consumer to appear before the Executive Engineer with objections, required a speaking final order, stayed coercive action for a limited period, directed service of the inspection report and provisional bill, and left any challenge to the final order to an appeal under section 127 of the Electricity Act, 2003.

### FACTUAL SUMMARY

Savir Ali petitioned the Allahabad High Court to quash recovery certificate R-2883 dated 25 February 2019 issued by the Executive Engineer, Electricity Distribution Division-II, Rampur, Paschimanchal Vidyut Vitran Nigam Ltd., and to restrain coercive action on that citation. He alleged that the licensee was proceeding without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the State and the electricity department were heard. The Court proceeded on the footing that an inspection report and provisional bill remained to be served.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

relegation to speaking final order then section 127 appeal

#### HOLDING

The writ challenging recovery certificate R-2883 dated 25.2.2019 was disposed of without quashing the citation. The petitioner was directed to appear on 5.2.2020 before the Executive Engineer with objection and evidence; the Engineer shall thereafter pass a speaking and reasoned final order within four weeks. Coercive action was stayed for seven weeks or until disposal of the objection, whichever is earlier, the stay vacating on default in filing the objection, and the citation reviving if the petitioner failed to appear. The licensee was directed to serve the inspection report and provisional bill within one week. If aggrieved by the final order, the petitioner may appeal under section 127 of the Electricity Act, 2003. ¶ 1

### PRINCIPLE TAGS

**alternative-remedy-relegation-section-127** After directing a speaking final order on the consumer's objection to the recovery citation, the Court left any remaining grievance to an appeal under section 127 of the Electricity Act, 2003. ¶ 1

**final-assessment-order-relegates-assessee-to-section-127-appeal** The Court expressly reserved the consumer's remedy against the Executive Engineer's final order to a section 127 appeal in accordance with law. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Counsel so submitted; the Court took a lenient view and directed a speaking final order without deciding the alleged Code breach. ¶ 1

#### NOT DECIDED — QUANTUM OR LEGALITY OF THE UNDERLYING ASSESSMENT REFLECTED IN THE RECOVERY CITATION

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